Plaintiff filed the instant lawsuit October 11, 2023 and was terminated just over three months later on January 31, 2024 (after a January 24, 2024 Skelly Notice). This temporal gap is not so wide that it cannot support an inference of causation. Perhaps tacitly acknowledging Plaintiff's *prima facie* case, Defendants argue that "Andrade's conduct on January 17, 2024 provided a legitimate, non-retaliatory basis for [his] termination." (Mot. at 20:24-25.) However, a jury could conclude from the temporal proximity along with Plaintiff's evidence regarding failure to accommodate and the allegations regarding his "interrogations" that Defendant's stated basis for termination is weak, implausible or inconsistent, such that the explanation is unworthy of credence. (*Hom v. Cushman & Wakefield Western* (1999) 72 Cal.App.4th 798, 806-807.)

Summary adjudication on the sixth cause of action is denied.

Objections to Evidence

The Court rules only on those objections material to the Court's ruling on the motion for summary judgment. (Code Civ. Proc. § 437c(q).)

Plaintiff's Evidentiary Objection 1. This objection is compound; Plaintiff objects to four individual paragraphs of the Declaration of Slater Bleichner-Jones and Exhibit C thereto. **Overruled**.

5. 9:00 AM CASE NUMBER: C24-02918
CASE NAME: CAMAY MCELVANE VS. EAST BAY ASIAN LOCAL DEVELOPMENT CORPORATION
***HEARING ON MOTION IN RE: AN ORDER PRELIMINARILY APPROVING THE CLASS ACTION SETTLEMENT, NOTICE OF SETTLEMENT, AND SETTING HEARING FOR FINAL APPROVAL**
FILED BY: MCELVANE, CAMAY JONTUE
****TENTATIVE RULING:****

Summary

Plaintiff Camay Jontue McElvane, individually, and on behalf of others similarly situated, ("Plaintiff") filed a Motion for Order Preliminarily Approving the Class Action Settlement with Defendant East Bay Asian Local Development Corp. ("Defendant"), Approving Notice of Settlement and Setting a Hearing for Final Approval ("Motion"). The Motion is **granted** as set forth herein. No appearance is required at the hearing on July 1, 2026.

Background

Plaintiff's motion seeks preliminary approval of a class action and PAGA settlement. Plaintiff alleged ten wage and hour violations, including failure to pay minimum wages and overtime, meal and rest break violations, inaccurate wage statements, and failure to reimburse business expenses, plus a PAGA claim. The settlement class consists of approximately 232 non-exempt, hourly employees who worked for the defendant in California during the class period from October 28, 2020 to October 23, 2025.

The parties agreed to a non-reversionary gross settlement of $439,000 after extensive negotiations assisted by mediator Brandon McKelvey. This amount was a compromise reflecting risks related to class certification, liability, and damages. Class counsel analyzed time records provided by the defendant and estimated maximum potential exposures of approximately $193,951 in unpaid wages, $282,531 in meal period claims, $201,808 in rest period claims, $453,100 in wage statement violations, $688,031 in waiting time penalties, $11,600 in unreimbursed expenses, and $460,600 in PAGA penalties—totaling over $2 million in potential liability. After deducting specified payments, the remaining net settlement amount will be distributed to participating class members proportionally based on workweeks worked during the class period.

The settlement agreement allocates the gross settlement amount as follows: up to $146,333.33 in attorneys' fees to class counsel (Emil Davtyan, David Yeremian, and Natalie Haritoonian of D.Law, Inc.), up to $30,000 in litigation costs, up to $10,490 in settlement administration costs to Apex Class Action, LLC (who will serve as settlement administrator), $5,000 as a class representative service payment to plaintiff McElvane, and $25,000 in PAGA civil penalties (with 65%/$16,250 payable to the LWDA and 35%/$8,750 allocated as individual PAGA payments to aggrieved employees based on pay periods worked). Defendant will also pay its corporate payroll tax obligations on class member payouts separately from the gross settlement amount.

Class members will receive notice via first-class mail with address verification through the National Change of Address Database, and will have 60 days to opt out, object, or dispute their credited workweeks. The settlement administrator will resolve disputes and may request personnel files from the defendant as needed. No portion of the gross settlement amount reverts to the defendant. The motion requests the court appoint Apex Class Action, LLC as settlement administrator, conditionally certify the class, approve the settlement's fairness, and schedule a final approval hearing.

Analyses

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co*. (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction … to the proposed settlement." (See also *Amaro v. Anaheim Arena Mgmt., LLC, supra,* 69 Cal.App.5th 521.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees, relying on the "common fund" theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id*., at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval.

Similarly, litigation costs and the requested representative payment of $5,000 for the representative plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

Ruling

1. The settlement is sufficiently fair, reasonable, and adequate to justify *preliminary* approval. Plaintiff's Motion is **granted**.
2. Counsel are directed to prepare an order, attaching a copy of this ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384(b).
3. Notwithstanding any contrary provision in the settlement agreement, 5% of the attorney's fees are to be withheld by the administrator until released by the Court after review of the compliance statement.
4. The Court may issue a release of the remaining 5% fees through an unreported minute order without a hearing upon review of the Plaintiff's compliance statement.
5. No appearance is required at the hearing on July 1, 2026.

6. 9:00 AM CASE NUMBER: C25-02253
CASE NAME: MARLON LEE VS. DANIELE JACUZZI
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: MEADOW CREEK GROUP, LLC
TENTATIVE RULING:*

Defendant Meadow Creek Group, LLC ("Defendant") brings this demurrer to the first amended complaint ("Complaint") of plaintiff Marlon Lee ("Plaintiff"). Defendant challenges Plaintiff's first